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Case Number: 26STCV07664 Hearing Date: September 4, 2026 Dept: 510

No.

9 - Scott J. Ferrell v. Edward Laurance, et al.

Defendants

Edward and Terese Laurance's Special Motion to Strike

Defendants

Edward and Terese Laurance move to strike Plaintiff's sole cause of action for intentional interference with contractual relations/economic advantage under Code of Civil Procedure section 425.16.

Requests

for Judicial Notice

Defendants request the Court take judicial

notice of eight documents: four documents relating to the City of Manhattan

Beach's Community Development Department; three documents relating to

Plaintiff's personal law firm; and one document from a California Coastal

Commission meeting. Because these documents are not relevant to deciding the instant motion, Defendants' request for judicial notice is denied.

Plaintiff requests the Court take

judicial notice of two webpages from the City of Manhattan Beach's website.

Again, because these documents are not relevant to deciding the instant motion, the request for judicial notice is denied.

Evidentiary

Objections

Plaintiff

makes a total of 12 objections to the declarations of Jeffrey Trissell, Paul Jonna, and Edward Laurance.

As

to the declaration of Jeffrey Trissell, objection no. 1 is sustained based on relevance.

As

to the declaration of Paul Jonna, objection nos. 1-3 are sustained based on relevance.

As

to the declaration of Edward Laurance, objection nos. 4 and 5 are sustained based on speculation. The remaining objections are overruled.

Defendants make 7 objections to the declaration of Scott Ferrell. Objections nos. 1 and 2 are sustained based on improper legal opinion. Objection no. 3 is sustained based on hearsay. Objection nos. 5, 6 and 7 are sustained based on lack of personal knowledge. Objection no. 4 is overruled.

Summary of Allegations

Plaintiff's

complaint asserts one cause of action against Defendants for intentional interference with contractual relations/economic advantage. (There are in fact two causes of actions indicated by the designation, but that is not relevant to the instant motion.) In the complaint, Plaintiff alleges he owned a beachfront condominium that he sought to sell. (Compl., ¶¶ 1, 5.) He alleges that Defendants, the owners of the sole adjoining unit and the only other members of their homeowners association, improperly interfered with the sale of his unit when they advised the prospective buyers that they were prohibited from using the unit as a periodic rental and that they would "prevent" them from using the property in this way. (See *id.*, ¶ 7.) As a result of this communication, Plaintiff alleges the buyers cancelled escrow, which resulted in economic damages. (*Id.*, ¶¶ 9, 12.)

Legal Standard

Courts

use a two-step process for resolving anti-SLAPP motions under section 425.16:

“First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 88 (Navellier).) The defendant must show “the cause of action is based on the defendant’s protected free speech or petitioning activity.” (Id. at p. 89.)

Second,

if the defendant establishes the first element, courts “must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim.” (Id. at p. 88.) “[T]he plaintiff need only have stated and substantiated a legally sufficient claim.” (Ibid., internal quotes and citations omitted.) “[C]laims with the requisite minimal merit may proceed.” (Id. at p. 94.) “Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ ” (Wilson v. Parker, Covert & Chidester (2002) 28 Cal.4th 811, 821.)

Prong

1: Protected Activity

Defendants

do not show that Plaintiff’s claim for intentional interference with contractual relations or interference with prospective economic advantage arises from Defendants’ protected activity. Defendants argue that the claim qualifies as protected activity under the anti-SLAPP statute because their statement to the buyer was made in connection with (1) an official proceeding; and (2) an issue of public interest. The Court will address each argument in turn.

1. Statements

Made in Connection with Official Proceeding

First, Defendants argue that the statements they made to the buyers are protected under CCP § 425.16(e)(1) and (e)(2) because

they were made in connection with an “official proceeding authorized by law.” (Id. [“ ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law”].)

“Although the statute refers to ongoing proceedings, ... ‘[p]relitigation communications may qualify for this protection so long as they “ ‘concern[] the subject of the dispute’ and [are] made ‘in anticipation of litigation “contemplated in good faith and under serious consideration.” ’ ” ’ ” (Medallion Film LLC v. Loeb & Loeb LLP (2024) 100 Cal.App.5th 1272, 1284 (Medallion).)

Defendants

contend that while Plaintiff’s complaint alleges that they informed the buyers that they would “prevent” them from using the property as a periodic rental, this statement was a threat of litigation that is protected as a pre-litigation communication. For support, Defendant Edward Laurance describes the context in which the statement was made. Laurance attests that he and the potential buyers met on a videoconference call before escrow on the property was complete. (Laurance Decl., ¶¶ 19-20.) During the videoconference call, Mr. Breuner, one of the buyers, expressed excitement about using the unit as a short-term vacation rental. In response, Defendant Laurance declares:

Mr. Breuner’s comments alarmed me and I quickly told him that the CC&Rs would prohibit using either of the two units in the duplex as a short-term vacation rental and that I would enforce that provision. I specifically recall stating that I would file a lawsuit to enforce the CC&Rs. If necessary, I fully intended to comply with this promise to file a lawsuit.

(Id.,
¶ 21.)

Defendants

argue that the statement that they would file a lawsuit “if necessary” constitutes

a protected activity under the anti-SLAPP statute.

The

Court disagrees. “Protection of prelitigation statements ‘only arises at the point in time when litigation is no longer a mere possibility, but has instead ripened into a proposed proceeding that is actually contemplated in good faith and under serious consideration as a means of obtaining access to the courts for the purpose of resolving the dispute.’ ” (Nirschl v. Schiller (2023) 91 Cal.App.5th 386, 401–402 (Nirschl).)

Here,

Defendant’s statement that he would sue the buyers if they did not comply with the CC&Rs reflects a mere theoretical possibility of litigation, not a threat of imminent litigation under serious consideration. “When conduct ‘will lead to litigation only if negotiations fail or contractual commitments are not honored, future litigation is merely theoretical rather than anticipated and the conduct is therefore not protected prelitigation activity.’ [Citation.] Indeed, ‘where one party to a contract requests the other party to perform its duties under the agreement,’ the “possibility of litigation in the event of nonperformance is not enough to conclude the claim is made in anticipation of litigation contemplated in good faith and under serious consideration. [Citation.]” (Medallion, supra, 100 Cal.App.5th at p. 1287.) Here, the buyers had not yet completed escrow and had not had the opportunity to use the property in any way. The mere possibility of litigation if the buyers did not comply with the CC&Rs does not constitute a protected pre-litigation demand.

Further,

Defendant Laurance’s belief that Breuner would not comply with the CC&Rs if the property was sold to him is insufficient to show that litigation was under serious consideration. “[O]ne side’s subjective belief that negotiations will fail or that litigation will likely occur is insufficient, standing alone, to transform statements made in a prelitigation negotiation into protected activity.” (Nirschl, supra, 91 Cal.App.5th at p. 403.)

Therefore,

Defendant Laurance’s statement was not made in serious contemplation of litigation and does not qualify as a protected pre-litigation demand under the anti-SLAPP statute.

2. Statements

Made in Connection with Issue of Public Interest

Second,

Defendants argue that the allegations underlying Plaintiff's claim are protected under CCP § 425.16(e)(4) as Defendants' statements constituted "any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." Applying this provision requires two steps. "First, we ask what 'public issue or [] issue of public interest' the speech in question implicates—a question we answer by looking to the content of the speech. (§ 425.16, subd. (e)(4).) Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest. It is at the latter stage that context proves useful." (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 149–150.)

Defendants fail to show the challenged activity implicates an issue of public interest or that it furthered any discourse about an issue of public interest. In their memorandum of points and authorities, Defendants contend, in a conclusory manner, that courts have found that protected activity can exist when a dispute arises in a homeowners association. (See Motion, at p. 9.) However, the three cases cited for this proposition involve distinguishable circumstances. For example, *Cocoa AJ Holdings, LLC v. Schneider* (2025) 115 Cal.App.5th 980, 993-994 involved a plaintiff who held a fractional interest in a 53-unit development; the court found that his communication to 150 other fractional interest owners opposing the developer's amendments to CC&Rs was a matter of public interest because it would financially impact them. *Ruiz v. Harbor View Community Assn.* (2005) 134 Cal.App.4th 1456, 1468-1469 similarly involved issues that would impact the interests of hundreds of members of an HOA. *Country Side Villas Homeowners Assn. v. Ivie* (2011) 193 Cal.App.4th 1110, 1117-1118 involved a homeowner contesting a new policy implemented by a five-person board of directors that would impact all members of the HOA.

Here, Defendants make no effort to show how these cases apply to the distinct factual scenario here. In this case, the homeowners association consisted only of Plaintiff and Defendants—it would not impact the financial interests of anyone else. This is as private a dispute as

can be. It is unclear how a larger public interest issue is reasonably implicated by this local dispute regarding the enforceability of CC&Rs that affect only two units. In addition, there is no evidence showing that Laurance's statement to potential buyers was a dispute within a homeowners association—the buyers were not members of the HOA when this discussion occurred.

For

the foregoing reasons, the Court finds Defendants have not met their burden with respect to the first prong of the anti-SLAPP analysis. Because Defendants have not met their burden on the first prong, the Court need not reach the second prong.

Disposition

Defendants Edward and Terese

Laurance's special motion to strike is denied.